CIASL

COCHIN INTERNATIONAL AVIATION SERVICES LIMITED

(A subsidiary of Cochin International Airport Ltd.)

CIASL/MRO/4 17-May-2022

M/s NIHVA Technologies Pvt.Ltd.
187 / G Block, 1st Floor,
Thermax Chowk, Above Renault Showroom
Chinchwad, Pune 411019

Gentlemen,

Sub:- Design, supply, installation, testing and commissioning of motorised Vertical Lifting Fabric Hoist Up Hangar Door for MRO at Cochin International Aviation Services Ltd. – Letter of Intent

Ref:- Your Tender Submitted and Opened on 27.04.2022 for the subject Work.

With reference to the above, your offer for the work of design, supply, installation, testing and commissioning of motorised Vertical Lifting Fabric Hoist Up hangar door for MRO at Cochin International Aviation Services Ltd. is hereby accepted on behalf of Cochin International Aviation Services Limited for a total amount of Rs. 2,83,00,300/- (Rupees Two Crore Eighty Three Lakhs and Three Hundred Only) including Annual Maintenance Contract. GST as applicable will be paid extra on submission of a valid GST invoice.

You are advised to submit a Bank Guarantee for 5% (five percent) of Rs. 2,83,00,300/- as performance guarantee with a validity period of 12 months within fifteen days from the date of this letter of intent.

You can submit Bank Guarantee issued by any of the nationalized Bank /Scheduled Bank in the prescribed format which is enclosed. On receipt of the performance guarantee, the formal work order shall be issued.

Thanking You
Yours faithfully

17/05

MANAGING DIRECTOR
Encl: BG Format

Form of Performance Guarantee/Bank guarantee bond

In consideration of Cochin International Aviation Services Limited, Nedumbassery having offered to accept the terms and conditions of the proposed agreement between CIASL and ..... hereinafter called "the said contractor (s)" for the work ..... (hereinafter called " the said agreement) having agreed to production of an irrevocable Bank Guarantee for Rs..... (Rupees ..... only) as a security / guarantee from the contractor(s) for compliance of his obligations in accordance with the terms and conditions in the said agreement.

1. We ..... (hereinafter referred to as the "Bank") hereby undertake to (indicate the name of the Bank) pay to CIASL an amount not exceeding Rs..... (Rupees ..... only) on demand by CIASL.

2. We .....do hereby undertake to pay the amounts due and payable (indicate the name of the Bank) under this guarantee without any demur, merely on a demand from CIASL stating that the amount claimed is required to meet the recoveries due to or likely to be due from the said contractors (s). Any such demand made on the Bank shall be conclusive as regards the amount due and payable by the Bank under this Guarantee. However, out liability under this guarantee shall be restricted to an amount not exceeding Rs. ..... (Rupees .....only)

3. We, the said Bank, further undertake to pay to CIASL any money so demanded notwithstanding any dispute or disputes raised by the contractor(s) in any suit or proceeding pending before any court or Tribunal relating thereto our liability under this present being absolute and unequivocal.

The payment so made by us under this bond shall be a valid discharge of our liability for payment thereunder, and the contractor(s) shall have no claim against us for making such payment.

4. We ..... further agree that the Guarantee herein contained shall (indicate the name of the Bank) remain in full force and effect during the period that would be taken for the performance of the said agreement, and it shall continue to

be enforceable till all the dues of CIASL under or by virtue of the said agreement have been fully paid, and its claims satisfied or discharged, or till the Engineer – in – charge, on behalf of CIASL, certifies that the terms and conditions of the said agreement have been fully and properly carried out by the said contractor(s), and accordingly discharge this guarantee.

5. We, (indicate the name of the Bank) further agree with CIASL that CIASL shall have the fullest liberty without our consent, and without affecting in any manner our obligations hereunder, to vary any of the terms and conditions of the said agreement or to extend time of performance by the said contractors(s) from time to time or to postpone for any time or from time to time any of the powers exercisable by CIASL against the said contractor(s), and to forbear or enforce any of the terms and conditions relating to the said agreement, and we shall not be relieved from our liability by reason of any such variation or extension being granted to the said contractor (s) or for any forbearance, act of omission on the part of CIASL or any indulgence by CIASL to the said contractor(s) or by any such matter or thing whatsoever which under the law relating to sureties would, but for this provision, have effect of so relieving us.

6. This Guarantee will not be discharged due to the change in the constitution of the Bank or the contractor(s).

7. We (indicate the name of the Bank) lastly undertake not to revoke this Guarantee except with the previous consent of CIASL in writing.

8. This Guarantee shall be valid upto .....unless extended on demand by CIASL. Notwithstanding anything mentioned above, our liability against this Guarantee is restricted to Rs. ..... (Rupees ..... Only), and unless a claim in writing is lodged with us within six months of the date of expiry or extended date of expiry of this Guarantee all our liabilities under this Guarantee shall stand discharged.

Dated the .....day of .....For.....

(Indicate the name of the Bank)